

JURIS INSIGHT

A LEGAL-AWARENESS INITIATIVE OF PEOPLEJURIS | AUGUST 2026 - POSH SPECIAL EDITION

POSH AT EVERY WORKPLACE

From government offices and hospitals to schools, clinics and small establishments

Functional Internal Committees, an accessible district Local Committee and visible Nodal Officers.

ONE LAW. EVERY SECTOR. EVERY DISTRICT.

The Sexual Harassment of Women at Workplace Act, 2013 applies across the entire spectrum of employment—government departments, public sector undertakings, private companies, hospitals, nursing homes, clinics, schools, colleges, coaching centres, societies, trusts, NGOs, professional establishments, shops, service providers and the unorganised sector.

Yet implementation remains uneven.

Large organisations may have policies and Internal Committees at their headquarters, while branch offices, schools, small hospitals, clinics, block-level establishments and informal workplaces may remain outside any effective compliance or complaint-management system.

The National Commission for Women's advisory dated **19 June 2026** seeks immediate and effective implementation of the POSH Act across government, private, organised and unorganised sectors. It recommends annual POSH audits, monitoring mechanisms, functional Internal Committees, stronger Local Committees and district-level accountability.

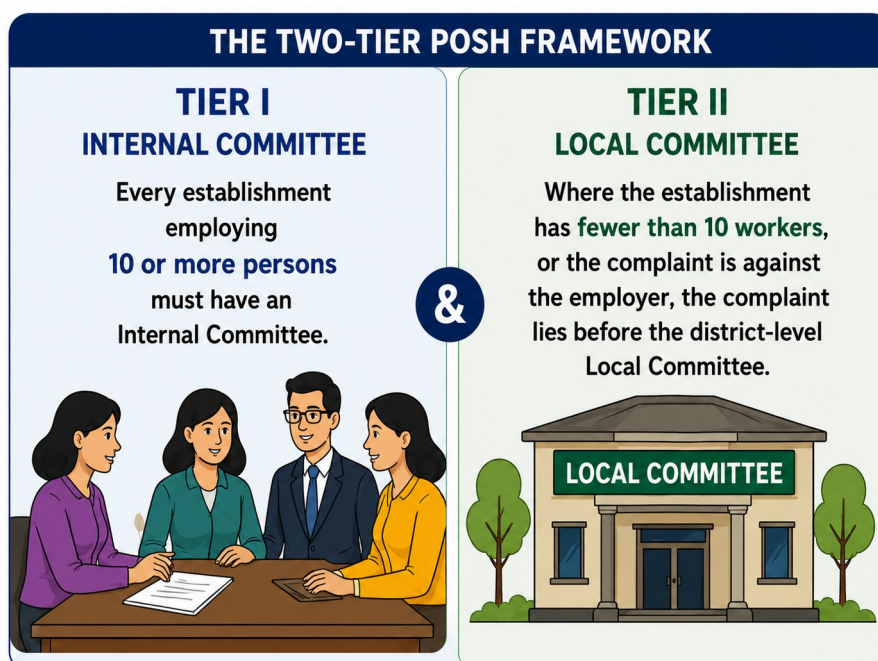
THE CENTRAL QUESTION

How will POSH compliance reach every government institution, private clinic, hospital, school, college, local body and small workplace - not merely establishments at metropolitan or corporate headquarters?

THE LEGAL ARCHITECTURE

THE TWO-TIER POSH FRAMEWORK

One law creates two connected redressal mechanisms so that workplace size does not defeat access.



TIER I - INTERNAL COMMITTEE

- Every establishment employing 10 or more

TIER II - LOCAL COMMITTEE

- The district Local Committee receives

persons must constitute an Internal Committee through a written order.

- Where offices or administrative units exist at different places, the obligation must be examined unit by unit.
- A committee at the State headquarters may not be sufficient for district, branch, hospital, campus or sub-divisional workplaces.

complaints from establishments with fewer than 10 workers.

- It also receives a complaint against the employer, even when the establishment otherwise has an Internal Committee.
- Local access is created through Nodal Officers at block, taluka, tehsil, ward or municipality level.

WHY THIS DISTINCTION MATTERS

The two-tier structure is intended to ensure that no working woman is left without a statutory forum merely because her workplace is small, informal, rural, privately managed or controlled by the person against whom the complaint is made.

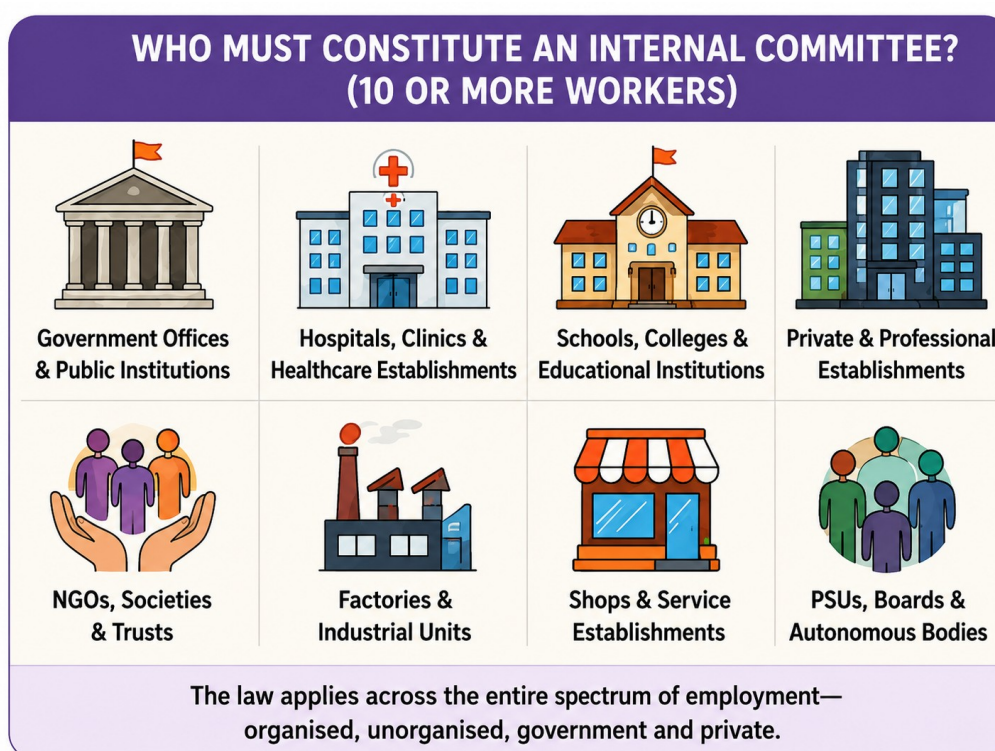
LEGAL DISTINCTION

The Nodal Officer is not the Local Committee. The Nodal Officer receives and forwards the complaint; the district Local Committee conducts the statutory inquiry.

COVERAGE ACROSS INSTITUTIONS

WHO MUST CONSTITUTE AN INTERNAL COMMITTEE?

The obligation is institutional, not merely corporate: every qualifying workplace must assess its own workforce and structure.



The definition of workplace includes government institutions, private organisations, societies, trusts, NGOs, professional establishments, educational institutions, health-service establishments, hospitals and nursing homes. The requirement may therefore apply across the following sectors:

GOVERNMENT & PUBLIC

- District, block and tahasil offices; municipalities and panchayat bodies.
- PSUs, boards, corporations, commissions and autonomous bodies.
- Government schools, colleges, hospitals and

HEALTHCARE

- Private hospitals, nursing homes, clinics and diagnostic centres.
- Dental, physiotherapy, rehabilitation and laboratory establishments.
- Medical and nursing educational institutions.

health institutions.

EDUCATION

- Government, aided and private schools; colleges and universities.
- Coaching, training, residential and hostel establishments.
- Technical, research and skill-development institutions.

PRIVATE & PROFESSIONAL

- Companies, LLPs, firms, law firms, banks and consultancy offices.
- Factories, shops, contractors, media and service establishments.
- Societies, trusts, NGOs and welfare-oriented organisations.

ONE HEAD OFFICE COMMITTEE MAY NOT BE ENOUGH

The implementation exercise must identify the actual workplace unit, the number and category of workers attached to it, and whether a legally compliant Internal Committee is genuinely accessible there.

CORRECTLY COUNTING THE WORKFORCE

WHO COUNTS TOWARDS THE 10-WORKER THRESHOLD?

The statutory expression employee is wider than permanent salaried employment.

WHO SHOULD BE COUNTED TOWARDS THE THRESHOLD?

Includes persons working:

- On regular, temporary, ad hoc, daily wage basis
- Through contractor or agency
- With or without remuneration
- As trainees, interns, apprentices, probationers
- On voluntary basis
- With or without knowledge of the principal employer



Do not count only permanent employees.
Every person working at the establishment counts.

PERSONS TO BE INCLUDED

- Regular, temporary, ad hoc and daily-wage workers.
- Persons supplied through a contractor or agency.
- Persons working with or without remuneration.
- Probationers, trainees, interns and apprentices.
- Volunteers and workers engaged with or without the principal employer's knowledge.

THE PRACTICAL RULE

- Do not count only the permanent payroll.
- Include contractual and outsourced personnel working at the establishment.
- Review the workforce at the actual office, clinic, hospital, school, campus or unit.
- Reassess the count whenever staffing or outsourcing arrangements change.

ILLUSTRATION - A "SMALL" PRIVATE CLINIC

DIRECT STAFF

2 doctors + 4 nurses + 2 reception/billing employees

OUTSOURCED STAFF

2 sanitation workers supplied through an agency

OTHER WORKER

1 laboratory technician - total workforce: 11

Although the clinic may describe itself as small, the persons working at the establishment take the total above 10. It should therefore assess and discharge the statutory obligation to constitute an Internal Committee.

COMPLIANCE TAKEAWAY

Every person working at the establishment may matter for the threshold. A narrow payroll-only count can produce a false finding of non-applicability.

LOCAL COMMITTEE JURISDICTION

WHEN CAN A WOMAN APPROACH THE LOCAL COMMITTEE?

The Local Committee is the statutory forum for small, informal and employer-controlled workplace situations.



FEWER THAN 10 WORKERS

Small clinics, shops, offices, enterprises, service establishments and other informal workplaces.

COMPLAINT AGAINST EMPLOYER

The complaint lies before the Local Committee even if the establishment has 10 or more workers and an Internal Committee.

UNORGANISED SECTOR

Domestic workers, daily-wage workers and women in small or informal workplaces require access through the local Nodal Officer.

WHY THE LOCAL COMMITTEE OFTEN REMAINS INVISIBLE

ACCESS FAILURES

- The constitution order or Chairperson details are not publicly available.
- Nodal Officers are not designated or do not know their role.
- Telephone numbers, email addresses and complaint locations are not published.

FUNCTIONAL FAILURES

- There is no private or confidential receiving facility.
- The Committee does not sit regularly or its members are untrained.
- Local-language information and travel support are unavailable for rural complainants.

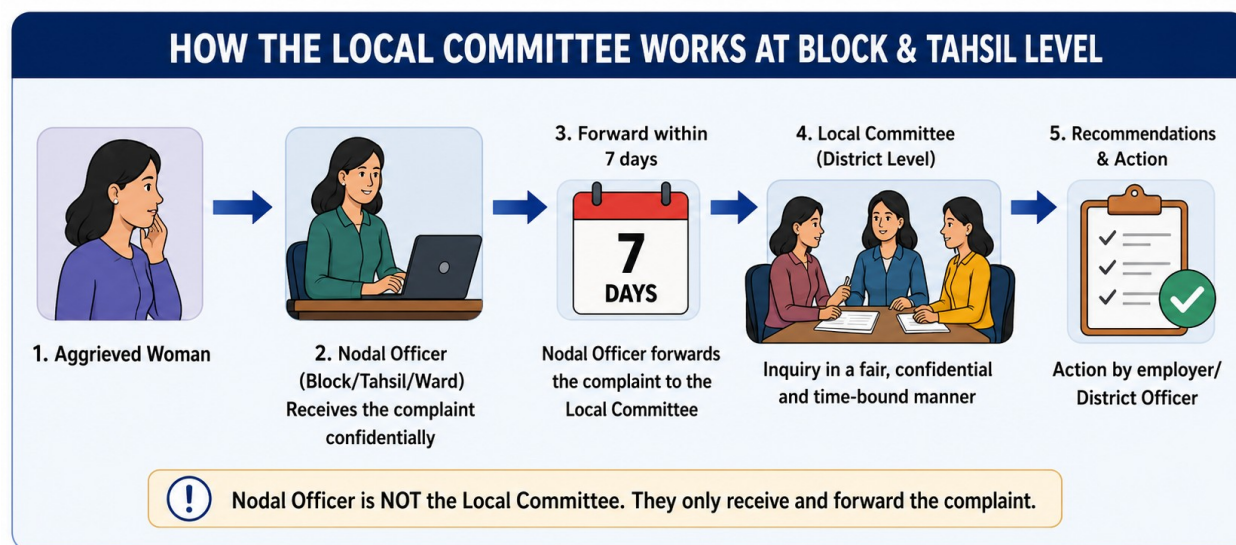
THE TEST OF EFFECTIVENESS

A Local Committee that cannot be found, contacted or approached is not an effective redressal mechanism, even if a notification exists on paper.

GRASSROOTS COMPLAINT ACCESS

FROM BLOCK OR TAHSIL TO THE DISTRICT LOCAL COMMITTEE

The district body conducts the inquiry; local Nodal Officers make the mechanism reachable.



THE SEVEN-DAY FORWARDING RULE

The Nodal Officer must receive the complaint confidentially, provide practical assistance where required, acknowledge receipt and forward the complaint to the district Local Committee within seven days. The Nodal Officer should not mediate, adjudicate credibility or decide whether the complaint is serious enough.

A PRACTICAL BLOCK-TAHSIL IMPLEMENTATION MODEL

1. Publicise the name, designation, office address, official mobile number, email and jurisdiction of every Nodal Officer, with an alternate officer during absence.
2. Create a confidential receiving point: private space, standard receipt, secure register, sealed transmission and assistance for a woman who cannot write the complaint.
3. Display local-language information at block and tahasil offices, gram panchayats, municipalities, police stations, health centres, schools, labour offices, DLSA offices, Common Service Centres and One Stop Centres.
4. Use circuit sittings at sub-divisional, block, tahasil or municipal facilities and secure video participation where repeated travel creates hardship, especially in remote or tribal areas.
5. Train Nodal Officers separately from Local Committee members; establish a district help desk and provide a dedicated budget for travel, sittings, training, translation and secure records.

CONFIDENTIALITY AT THE FIRST CONTACT

A complaint should never be discussed at a public counter or circulated through ordinary office channels.

DISTRICT-WIDE IMPLEMENTATION

MAKING THE DISTRICT THE OPERATIONAL UNIT

One district Local Committee must be connected to visible access points and coordinated sectoral monitoring.

POSH COMPLIANCE CANNOT END AT THE DISTRICT HEADQUARTERS

Making the Structure Visible and Operational



1. Internal Committee in every qualifying workplace



2. Local Committee in every district



3. Visible Nodal Officer in every block, taluka and tehsil



4. Accessible urban contact point in every ward or municipality



5. Trained members



The law has already created the structure.

The present challenge is to make that structure visible and operational in every school, hospital, clinic, government office, private institution and small workplace.



6. Secure complaint channels



7. Regular audits



8. Public awareness



9. Administrative monitoring



10. Protection from retaliation



No workplace should be too small, too remote or too informal for a woman to obtain protection under the POSH Act.



WHY DISTRICT-HEADQUARTERS COMPLIANCE IS NOT ENOUGH

A notification constituting a committee does not, by itself, create meaningful access. The statutory structure becomes effective only when a woman can identify the correct forum, reach it without avoidable hardship and use a confidential complaint channel.

- Internal Committee in every qualifying workplace and administrative unit.
- District Local Committee with publicly available member and contact details.
- Visible Nodal Officers at block, taluka and tehsil level, with urban access points in wards or municipalities.

THE OPERATIONAL COMPLIANCE TEST

District administration must measure functionality rather than the mere existence of orders or uploaded records. Effective implementation requires:

- trained committee members and Nodal Officers;
- secure complaint-receiving and forwarding systems;
- regular audits, public awareness and administrative monitoring; and
- protection of complainants and witnesses against retaliation or victimisation.

The implementation chain must remain visible and operational in government offices, schools, hospitals, clinics, private institutions and small or informal workplaces.

IMPLEMENTATION TAKEAWAY: No workplace should be too small, too remote or too informal for a woman to obtain effective protection under the POSH Act.

ESTABLISH A DISTRICT POSH HELP DESK

A district-level support hub for practical POSH access



1. Current details of every Internal Committee



2. Local Committee member details



3. Block and tahasil Nodal Officer details



4. Complaint-routing information



5. SHe-Box assistance



6. Local-language awareness material



7. Training calendars



8. Annual audit and reporting records



This help desk should provide procedural information without disclosing confidential complaint details.



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ROLE OF THE DISTRICT POSH HELP DESK

The help desk should function as the district's central point for reliable POSH information, access and coordination. It should help workers, institutions, committee members and Nodal Officers identify the appropriate statutory route without substituting itself for the Internal Committee or Local Committee.

- Maintain current Internal Committee and Local Committee details.
- Publish block and tahasil Nodal Officer contacts and complaint-routing information.
- Provide SHe-Box assistance and local-language awareness material.

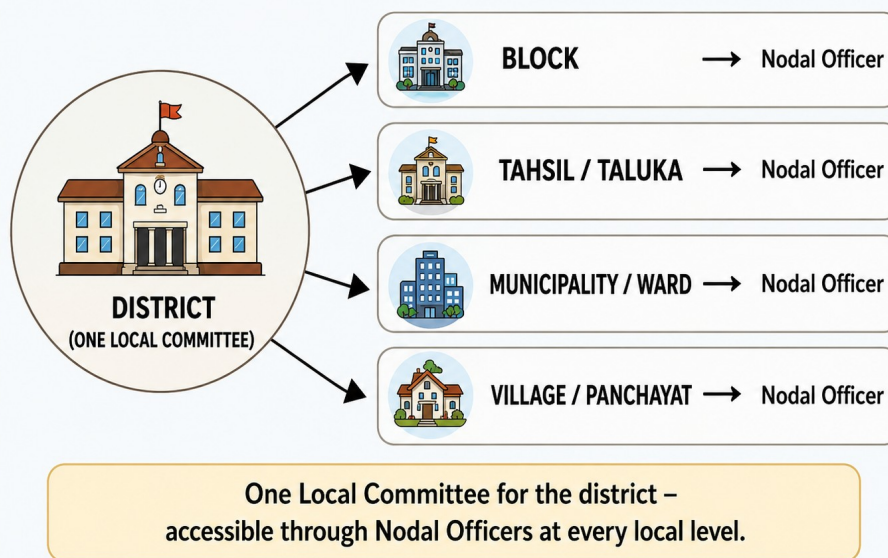
CONFIDENTIALITY SAFEGUARD

- Maintain a current training calendar and annual audit/reporting records.
- Provide clear procedural guidance on where and how a complaint may be submitted.
- Assist in connecting the complainant to the competent Nodal Officer, Internal Committee or district Local Committee.
- Use a secure directory, controlled access to records and documented update responsibility.

The help desk may explain procedure and facilitate access, but it must not disclose identities, complaint details, inquiry material or confidential records. Complaints must not be discussed at public counters or circulated through ordinary office channels.

IMPLEMENTATION TAKEAWAY: The help desk must improve access and coordination while preserving the statutory jurisdiction and confidentiality of the Internal Committee and Local Committee.

WHERE IS THE LOCAL COMMITTEE PRESENT?



REGISTER A - 10 OR MORE WORKERS

- Name, address, sector, licensing authority and worker count.
- Internal Committee status, constitution date, tenure and external member.
- Training, annual report, SHe-Box and POSH audit status.

REGISTER B - FEWER THAN 10 WORKERS

- Small clinics, shops, coaching centres, professional offices and service providers.
- NGOs, trusts, societies, domestic-work clusters and informal workplaces.
- The purpose is to connect workers to the Nodal Officer and Local Committee - not to require every small unit to form an Internal Committee.

AUGUST 2026 ACTION AGENDA

STATE GOVERNMENT

- Confirm District Officers and issue department-wise directions.
- Create uniform audit, reporting and quarterly review formats.

DISTRICT OFFICER

- Constitute or reconstitute the Local Committee.
- Designate Nodal Officers, publish contacts and conduct a workplace survey.

EMPLOYERS - 10+

- Count workers correctly; constitute and train the Internal Committee.
- Display details, complete the audit and submit the annual report.

SMALL ESTABLISHMENTS

- Display Nodal Officer details and inform women workers about the Local Committee.
- Cooperate with inquiries and protect complainants and witnesses from retaliation.

LEGAL TAKEAWAY

10 or more workers: Internal Committee. Fewer than 10 workers: district Local Committee. Complaint against the employer: Local Committee. Block/tahasil level: the Nodal Officer receives and forwards the complaint within seven days.

No workplace should be too small, too remote or too informal for a woman to obtain protection under the POSH Act.

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